

August 01, 2018



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 20699

EXPIRATION DATE: 2018-12-31

(FOR RENEWAL, SEE 49 CFR 107.109)

1. GRANTEE: General Defense Corp
Davie, FL
2. PURPOSE AND LIMITATIONS:
 - a. This emergency special permit authorizes the one-time, one way transportation of an explosive by cargo aircraft, which is otherwise forbidden by the regulations. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101 Hazardous Materials Table, Column (9B) and 172.204(c)(3) in that the explosive is forbidden for transportation aboard cargo aircraft, except as specified herein.

August 01, 2018

5. BASIS: This emergency special permit is based on the application of General Defense Corp dated July 10, 2018, submitted in accordance with § 107.105, a determination that it is necessary for immediate national security.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Mines with bursting charge*	1.1D	UN0137	N/A

*Must be classified in accordance with 49 CFR 173.56.

7. SAFETY CONTROL MEASURES:

a. PACKAGING: The explosives must be packaged as prescribed in the EX approval letter and in high-density foam in hard plastic cases.

b. One-time transportation is authorized from Burgas, Bulgaria to Portsmouth, NH. Once the hazardous materials covered under the special permit reach the destination, further transportation under the terms of this special permit is prohibited.

c. Authorized Aircraft: The aircraft must be a 737-800C owned and operated by Hillwood Airways, and must be authorized by a FAA operations certificate.

d. Maximum weight: Not more than 275.20 kg of net explosive weight may be transported.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. Hillwood Airways must hold a valid special permit authorizing the transportation of the Class 1 material by cargo aircraft.

9. MODES OF TRANSPORTATION AUTHORIZED: Cargo-only aircraft.

August 01, 2018

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each aircraft used to transport packages covered by this special permit. The shipper must furnish a copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU) – "The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous

August 01, 2018

materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for William Schoonover
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, U.S. Department of Transportation, East Building PHH-30, 1200 New Jersey Avenue, Southeast, Washington, D.C. 20590.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: TG